

General Terms and Conditions for the Supply of Goods to Business Customers

Amikon GmbH – final version – as at 15 July 2026

Non-binding English translation. In the event of discrepancies, the German version prevails.

Note: These General Terms and Conditions apply exclusively to business dealings with entrepreneurs, legal entities under public law and special funds under public law.

1. Scope

1.1 These General Terms and Conditions (hereinafter "GTC") of Amikon GmbH (hereinafter "Seller") apply to all contracts for the supply of goods concluded between an entrepreneur (hereinafter "Customer") and the Seller in respect of the goods offered by the Seller. The inclusion of the Customer's own terms is hereby objected to unless expressly agreed otherwise.

1.2 These GTC also apply where the Seller carries out the delivery without specific reservation in the knowledge of terms of the Customer that conflict with or deviate from these GTC.

1.3 An entrepreneur is a natural or legal person or a partnership with legal capacity acting in the exercise of its commercial or independent professional activity when concluding the legal transaction.

2. Conclusion of Contract

2.1 The provisions of the respective quotation take precedence for the conclusion of the contract. Where the Seller submits a binding quotation to the Customer for a limited period, the contract is concluded by its unaltered acceptance within the stated period. In all other respects, the following provisions apply.

2.2 Product descriptions in the Seller's online shop do not constitute binding offers but serve to enable the Customer to submit a binding offer.

2.3 The Customer may submit its offer via the online order form, by email or by fax.

2.4 The Seller may accept the Customer's offer within five days by sending the Customer an order confirmation in text form, by delivering the goods ordered or by requesting payment from the Customer. Where several acts of acceptance occur, the contract is concluded upon the first of them. The acceptance period begins on the day after the Customer sends the offer.

2.5 If a payment method offered via PayPal is selected, payment is processed via PayPal under the conditions applicable thereto. Where expressly stated during the order process, the Seller declares acceptance of the offer upon completion of the payment process.

2.6 In the case of an order placed via the online shop, the text of the contract is stored after conclusion of the contract and sent to the Customer in text form. Where a customer account exists, the order data can be retrieved there.

2.7 The Customer can identify and correct input errors before submitting its order using the usual technical means.

2.8 The German and English languages are available for the conclusion of the contract.

2.9 Order processing and communication are generally carried out by email. The Customer must ensure that the email address provided is correct and that emails from the Seller can be received.

2.10 Agreed special conditions apply only to the respective contractual relationship unless expressly agreed otherwise.

2.11 If, after conclusion of the contract, the Seller becomes aware of circumstances that justify reasonable doubts as to the Customer's ability to perform and that jeopardise the Seller's claim to consideration, the Seller is entitled to refuse outstanding performance until the consideration has been rendered or appropriate security has been provided. If, despite the setting of a reasonable deadline, the Customer provides neither the consideration nor appropriate security, the Seller is entitled to withdraw from the contract in accordance with the statutory provisions. Mandatory provisions of the German Insolvency Code remain unaffected.

3. Prices and Terms of Payment

3.1 Unless the quotation provides otherwise, prices are net prices plus statutory value added tax. Packaging and shipping costs, loading, insurance, customs duties and other charges may be invoiced separately.

3.2 In the case of deliveries outside the European Union, further costs may arise which are to be borne by the Customer unless the Seller is responsible for them.

3.3 The available payment options are set out in the respective quotation or in the online shop.

3.4 Where payment in advance has been agreed, payment is due immediately after conclusion of the contract unless a later due date has been agreed.

3.5 In the case of delivery against invoice, the purchase price is payable without deduction within 14 days of receipt of the invoice unless agreed otherwise. The Seller may make this payment method conditional on a credit assessment.

3.6 Payment is deemed received once the equivalent amount has been credited to an account of the Seller. In the event of default in payment, the Customer owes default interest at ten percentage points above the applicable base rate. Further statutory rights remain unaffected. Incoming payments are applied first to costs and interest and then to the oldest claim.

4. Delivery and Shipping Conditions

4.1 Delivery is made to the delivery address specified by the Customer unless agreed otherwise.

4.2 In the case of deliveries by forwarding agent, delivery is made "kerbside" unless agreed otherwise.

4.3 The Seller is entitled to make reasonable partial deliveries and may issue partial invoices.

4.4 In the event of incorrect or improper supply to itself, the Seller may withdraw from the contract if it is not responsible for the non-delivery and has concluded a specific covering transaction with due care. The Customer will be informed without undue delay; consideration already rendered will be refunded without undue delay.

4.5 The risk of accidental loss and accidental deterioration passes to the Customer upon handover to the forwarding agent, carrier or other third party designated to carry out the shipment. Transport insurance is taken out only at specific request and at the Customer's expense.

4.6 If delivery is not possible for reasons for which the Customer is responsible, the Customer bears the reasonable additional expenses thereby incurred, in particular the costs of renewed delivery, return transport and storage. Further statutory claims remain unaffected.

4.7 If shipment is delayed for reasons for which the Customer is responsible, the risk passes to the Customer upon notification of readiness for shipment. Any storage costs incurred are borne by the Customer.

4.8 In the case of collection by the Customer, the Customer will be informed of readiness for collection. No shipping costs are incurred in this respect.

5. Force Majeure

In the event of force majeure affecting performance of the contract, agreed performance periods are extended by the duration of the impediment plus a reasonable restart period. The Seller will inform the Customer of the occurrence of the impediment and its expected duration without undue delay.

Force majeure means unforeseeable events as well as events beyond the Seller's control whose effects on performance of the contract cannot be prevented by reasonable measures.

If the impediment lasts longer than eight weeks, either party is entitled to withdraw from the contract in respect of the part not yet performed, provided that it cannot reasonably be expected to adhere to the contract. Mandatory statutory claims remain unaffected.

6. Delay at the Customer's Request

If shipment or delivery is delayed at the Customer's request by more than one month after notification of readiness for shipment, storage charges of 0.5 % of the net value of the delivery item affected by the delay may be charged for each additional month commenced, up to a total maximum of 5 % of that value. The Customer reserves the right to prove that no loss or a substantially lower loss has been incurred. The Seller reserves the right to prove a higher loss.

7. Retention of Title

7.1 The Seller retains title to the goods delivered until the purchase price has been paid in full and until all claims arising from the business relationship with the Customer have been satisfied.

7.2 Any processing or transformation of the goods subject to retention of title is carried out on behalf of the Seller without giving rise to any obligations for the Seller. In this respect the Seller is deemed to be the manufacturer and acquires title to the newly created item.

7.3 Goods subject to retention of title may neither be pledged nor assigned as security. The Customer is entitled to resell the goods subject to retention of title in the ordinary course of business. The Customer hereby assigns to the Seller, by way of security, the claims against third parties arising from the resale or on any other legal ground in respect of the goods subject to retention of title, in the amount of the respective invoice value of those goods including value added tax. The Seller accepts the assignment.

If the goods subject to retention of title are sold together with other goods not owned by the Seller, the claim is assigned in the ratio of the invoice value of the goods subject to retention of title to the invoice value of the other goods sold.

The Customer remains authorised to collect the assigned claims until revoked. The Seller will revoke the collection authorisation only if the Customer fails to meet its payment obligations when due or if the Seller's claim to consideration is jeopardised.

7.4 The Customer must notify the Seller without undue delay of any access by third parties to the goods subject to retention of title or to the assigned claims and must provide the information and documents required to safeguard the Seller's rights. The Customer must keep collected amounts separate and pay them to the Seller when the secured claims

fall due.

7.5 If the value of the securities exceeds the secured claims by more than 10 %, the Seller will release securities of its choice at the Customer's request.

8. Liability for Defects / Warranty

If the purchased item is defective, the statutory provisions apply unless otherwise specified below.

8.1 There are no claims for defects in the case of natural wear and tear or in the case of damage arising after the passing of risk as a result of faulty or negligent handling, excessive strain, unsuitable operating materials or particular external influences not assumed under the contract. The same applies to improper modifications or repair work carried out by the Customer or third parties, unless the Customer proves that the fault complained of was not caused thereby.

8.2 Withdrawal on account of an insignificant defect is excluded. In all other respects, the statutory rights in respect of defects remain unaffected. Payments may be withheld only to an extent that is reasonably proportionate to the defect asserted. If only a separable part of the delivery is defective, the Customer may not refuse acceptance of the remaining non-defective delivery, provided that acceptance is reasonable for the Customer.

8.3 In the case of new goods, the limitation period for rights in respect of defects is one year from delivery. In the case of used goods, rights in respect of defects are excluded.

8.4 The above limitations of rights in respect of defects and reductions of limitation periods do not apply

- to items which, in accordance with their customary use, have been used for a building and have caused its defectiveness,
- to claims of the Customer for damages and reimbursement of expenses,
- in the case of fraudulent concealment of a defect,
- to statutory rights of recourse of the Customer, and
- to claims arising from a guarantee assumed by the Seller.

8.5 The Customer may demand subsequent performance in accordance with the statutory provisions, either by remedying the defect or by delivering an item free of defects. The Seller's right to refuse the chosen form of subsequent performance under the statutory conditions remains unaffected.

8.6 The examination of a defect and the carrying out of measures of subsequent performance do not in themselves constitute an acknowledgement of the defect or of any legal obligation, unless such an acknowledgement arises expressly or from the circumstances of the individual case. The statutory provisions on negotiations, suspension and recommencement of the limitation period remain unaffected.

8.7 If subsequent performance is effected by replacement delivery, the Customer must, at the Seller's option, hold the defective item ready for collection or return it after prior consultation. The Seller bears the necessary costs of return. The return consignment must be marked in such a way that it can be assigned to the respective transaction.

8.8 In the case of a replacement delivery, the Customer owes no compensation for use in respect of the intended use of the defective item until its return. Statutory claims in the event of a reversal of the contract remain unaffected.

8.9 If the Customer is a merchant, the duties of examination and notification under section 377 of the German Commercial Code apply.

9. Liability

9.1 The Seller is liable without limitation in the case of intent or gross negligence, in the case of intentional or negligent injury to life, body or health, in accordance with a guarantee undertaking, and on the basis of mandatory statutory liability, in particular under the German Product Liability Act.

9.2 In the case of a slightly negligent breach of a material contractual obligation, liability is limited to the damage typical for the contract and foreseeable at the time the contract was concluded. Material contractual obligations are obligations whose fulfilment makes the proper performance of the contract possible in the first place and on whose observance the Customer may regularly rely.

9.3 In all other respects, liability for slight negligence is excluded.

9.4 The above provisions also apply in favour of the Seller's legal representatives and vicarious agents.

10. Set-off, Retention and Assignment

10.1 The Customer is entitled to set off counterclaims that are undisputed, established with final legal effect or ready for decision. The same applies to counterclaims arising from the same contractual relationship. The Customer may assert rights of retention and refusal of performance only to the extent that they are based on the same contractual relationship.

10.2 The assignment of claims of the Customer requires the prior consent of the Seller. Mandatory statutory provisions, in particular section 354a of the German Commercial Code, remain unaffected.

11. Applicable Law and Place of Jurisdiction

11.1 All legal relationships are governed by the law of the Federal Republic of Germany to the exclusion of the United Nations Convention on Contracts for the International Sale of Goods.

11.2 If the Customer is a merchant, a legal entity under public law or a special fund under public law, the exclusive place of jurisdiction for all disputes arising from or in connection with the contractual relationship is the Seller's registered office. The same applies if the Customer has no general place of jurisdiction in Germany. The Seller is also entitled to bring proceedings against the Customer at the Customer's general place of jurisdiction.